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2023 SEP 19 02:52 PM
KING COUNTY
SUPERIOR COURT CLERK
E-FILED
CASE #: 23-2-11352-7 SEA

SUPERIOR COURT OF WASHINGTON
COUNTY OF KING

Petitioner
ZACKARIAH BENNETT

And Respondent

MELVINA MANNING

NO. 23-2-11352-7 SEA

MANNING
RESPNSE TO COMPLAINT OF
ZACKARIAH BENNETT

Comes now MELVINA MANNING, by and through her Attorney of Record, Nancy A. Gass, and denies the allegations and claims made by Zackariah Bennett in his complaint filed on August 4, 2023.

BACKGROUND

- In early 2008, Zackariah Bennett, Plaintiff, and his then wife Kelly were living in Colorado with their 14-month-old son, TB.
- Mr. Bennett called his mother, Defendant Melvina Manning and asked if she would come to Colorado and pick up TB. As Mr. Bennett put it, they were having some issues with Child Protective Services.
- Ms. Manning and her husband flew to Colorado, picked up Timothy and flew home to Washington with him.
- The next day, the Duvall police department came to ensure that Timothy was actually at the Manning residence in Washington. It appears Colorado's Child Protective Services asked Duvall Police to do a wellness check.

- When the Mannings brought TB to Washington, he was way behind in development for a 14-month-old child; he could not walk, crawl, or feed himself. The Mannings believed this to be related to Mr. Bennett and his wife Kelly's use of drugs and alcohol resulting in neglect of the young boy.
- Mr. Bennett ultimately ended up in prison. TB's mother did not feel able to properly care for Timothy.
- In 2008 Defendant Melvina Manning was awarded custody of TB. As part of the 2008 custody order, a restraining order was issued restraining Zachariah Bennett from disturbing the peace of TB.
- Mr. Bennett never made any attempt to contact TB from 2008 until June 23, 2019. At that time, Mr. Bennett stayed in his car honking his horn while his then girlfriend attempted to open the door and enter the house when TB was home alone. Mr. Bennett was yelling for TB to come outside. TB did not.
- The next attempt Mr. Bennett made to contact his son was on June 12, 2022.
- Ms. Manning's dogs were barking and someone was knocking on the door. When she opened the door there were two young children at her door. They indicated they were TB's siblings and that they wanted to meet him. Mr. Bennett's girlfriend or wife was standing down the walkway.
- Mr. Bennett approached the porch and demanded to see TB who came to the door and told his father that he didn't want to see him.
- Mr. Bennett became agitated and aggressive and demanded that TB meet his siblings. TB went back to his room.
- Based on his behavior, Ms. Manning sought a protection order. The court issued an order protecting Melvina Manning and TB from Mr. Bennett's aggressive behavior and threats. This was the second order issued in King County to protect TB from his father.

RESPONSE TO ISSUES PRESENTED

Defamation of Character

- Ms. Manning denies Mr. Bennett's claim of Defamation of Character

- 1 ○ After the second incident of Mr. Bennett showing up at the Manning's
2 residence unannounced, TB asked Ms. Manning to request an anti-
3 harassment order.
- 4 ○ After reviewing the filings and declarations presented by Ms. Manning, the
5 Judge Michael Finkle, Issaquah District Court, determined, sua sponte, that
6 this matter should be heard as a Domestic Violence Matter and transferred
7 the case to the South Division at the Maleng Regional Justice Center.
- 8 ○ These matters were adjudicated in 2022. If Mr. Bennett felt that Ms. Manning
9 made false allegations in that proceeding, he should have addressed it in that
10 proceeding.

11 Intentional and/or Reckless Infliction of Emotional Distress

- 12 • Mr. Bennett brought Jessica, JB, and AB unannounced to Ms. Mannings home.
- 13 • Mr. Bennett initially stayed near his vehicle and sent the two young children to Ms.
14 Manning's door in order to attempt to entice TB out of the house. Once Ms.
15 Manning saw Mr. Bennett and told hm he wasn't welcome, he approached to front
16 door of the home and demanded that TB be brought out to meet his siblings.
- 17 • TB came to the door and told Mr. Bennett he did not want to see him.
- 18 • Mr. Bennett became agitated and aggressive and demanded that TB meet his
19 siblings. TB went back to his room.
- 20 • Again, these issues were adjudicated in the Protection Order hearing in July 2022.
21 That court issued an order protecting TB from his father due to the father's
22 aggression and threatening manner.
- 23 • Any distress was caused by Mr. Bennett attempting to use childrenas tools to entice
24 TB out of his home. Mr. Bennett bears full responsibility for any trauma caused by
25 his actions.

26 Fraud

- Mr. Bennett alleges that Ms. Manning committed fraud of various sorts. He claims
 to have discovered said fraud on November 25,2022 but gives no further
 explanation.
- Ms. Manning denies committing any fraud in her dealings with Mr. Bennett.

1 Perjury

- 2 • Mr. Bennett alleges that Ms. Manning knowingly and intentionally made false
3 sworn statements yet fails to detail what statements were false.

4 These issues were adjudicated in 2022 when the court issued a Domestic Violence
5 Restraining order.

6 Abuses of Process

- 7 • Apparently, Mr. Bennett believes that because the court awarded custody of TB to
8 Ms. Manning in 2008 while he was being held in jail, that Ms. Manning abused the
9 judicial process.
- 10 • Between 2008 and 2019, Mr. Bennett never reached out to TB to try to build a
11 relationship with him.
- 12 • Rather, after 11 years of silence he shows up as a total stranger to TB's home when
13 he knew the Mannings were at a family event and TB was likely home alone.
- 14 • He sat in car honking his horn and yelling and getting his girlfriend to attempt to
15 make entry without invitation into the Manning home. Mr. Bennett then claims that
16 Ms. Manning's filings in order to seek an order protecting TB from Mr. Bennett's
17 aggressive and threatening behavior is an abuse of process.
- 18 • If Mr. Bennett thought this was an abuse of power, he should have addressed it with
19 that court. This issue has been adjudicated. It should not be brought up more than a
20 year later.
- 21 • Ms. Manning denies allegations that she abused the process.

22 Intercepting, recording or divulging private communication – RCW 9.73.030 (1)(a)-(b)

- 23 • Mr. Bennett claims that Ms. Manning divulged private communications between
24 himself and his then wife Kelly.
- 25 • Mr. Bennett fails to concede that there is a bodily harm exception to the privacy
26 statute that WA courts have interpreted broadly.

Custodial Interference in the first degree – RCW 9A.40.060 (1)(a)(c)(d)

- Mr. Bennett is being less than honest with the court.
- He claims that he asked his mother to take TB while he focused on getting Kelly
 evaluated for drug treatment. In reality, Mr. Bennett and Kelly asked Ms. Manning

1 to take TB to Washington because they were being investigated by child protective
2 services. As evidence, the Duvall/Carnation police department showed up at the
3 Manning's home the day after they got back to Washington with TB. They indicated
4 that Colorado's CPS asked them to do a wellness check and ensure that the baby was
5 actually where his parent's claimed he was.

- 6 • Mr. Bennett also fails to disclose that his probation violation was related to drug use
7 and beating Kelly while he was on probation. Ms. Manning is informed and believes
8 that the domestic violence perpetuated against Kelly by Mr. Bennett was so bad, she
9 has a lifetime protection order against him.
- 10 • Mr. Bennett fails to acknowledge that if Ms. Manning had not sought and received
11 custody of TB in 2008, he would likely have been in the foster care system.
- 12 • It appears Mr. Bennett has been out of prison since 2012. He presents no evidence
13 that he sought to build a relationship with his son after he got out of prison.
- 14 • Ms. Manning did suggest to Mr. Bennett that he and TB engage in reunification
15 therapy in order to build a father son relationship. Mr. made no attempt to contact
16 TB until 2019, some seven years after his release from prison.
- 17 • Ms. Manning denies custodial interference with respect to TB and Mr. Bennett

18 Tortious Interference with Parental Rights and Alienation of Affections

19 *Wyatt v. McDermott*, 283 Va. 685, 725 S.E. 2d 555 (2012)

- 20 • Mr. Bennett erroneously relies on Wyat v. McDermott
 - 21 ○ This case is a case in Virginia and not based on Washington law
 - 22 ○ The Wyatt case specifically addresses an instance where a father's parental
23 rights were interfered with, without due process of law. *Id. at p. 693*. In this
24 case, Mr. Bennett had due process of law. The fact that he has not taken
25 advantage of the legal system to maintain a relationship with his son is not
26 the fault of Ms. Manning. He could have, at any time, filed a petition to
regain custody of his son. He failed to do so.
 - As stated above, The Mannings had suggested that if Mr. Bennett wanted to
have a relationship with his son 10+ years after they had last seen each other,

1 that he should meet with TB's counselor and they could engage in
2 reunification therapy. Mr. Bennett failed and refused to follow such action.

3 *McGrady v Rsenbaum, 62 Misc.2d 182, 186, 308 N.Y.S.2d 1818*

- 4 • Once again, Mr. Bennett cites a case that is not relevant to the facts in this matter.
 - 5 ○ The McGrady case relies on an adopted child being kidnapped from its
 - 6 adoptive parent. This case has nothing to do with kidnapping. Rather, Ms.
 - 7 Manning went to court to obtain custody of her grandson when it became
 - 8 apparent neither of TB's parents could care for him; one was in drug rehab
 - 9 and one was in prison.

10 CONCLUSION

11 Throughout this sad situation, Mr. Bennett has behaved badly. He arrived
12 unannounced at TB's home and frightened the child into believing he was going to be
13 kidnapped. When his aims were thwarted, Mr. Bennett got angry and aggressive towards
14 his child and his mother.

15 When Mr. Bennett finally decides he wants a relationship with TB, he appears and
16 aggressively demands one. It's no wonder that TB is frightened for his own security and
17 doesn't want to meet with Mr. Bennett.

18 Any lack of a relationship between TB and Mr. Bennett falls squarely on Mr.
19 Bennett's shoulders. From 2008, when TB began living with his grandmother, until 2019
20 when his first appeared at the Manning home, Mr. Bennett made minimal effort to
21 communicate with TB; one or two letters during the roughly 4 years he was in prison.

22 At TB's request, Ms. Manning sought a protective order so that TB could feel at
23 least somewhat more secure in his home. Mr. Bennett appeared in that case and failed to
24 convince that court that a domestic violence protection order should not be issued.

25 Ms. Manning presented evidence and made statements under penalty of perjury in
26 that case. The court found her and TB credible and chose to issue a DV protective order.

Since Mr. Bennett failed in the DV matter, he is now trying to use the court to
justify his bad behavior. All of Mr. Bennett's claims have been or should have been
adjudicated in prior hearings. Now that he has lost, he should not be allowed to relitigate
such matters under the color of a new cause of action.

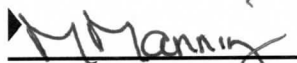
1 He has made unreasonable and unsupported claims detailing Ms. Mannings
2 supposed bad behavior. He has relied on cases that have no relevance to the facts in this
3 matter.

4 Mr. Bennett's complaint should be dismissed for being frivolous and lacking and
5 basis in law or fact.

6 I declare under penalty of perjury under the laws of the state of Washington that the facts I have
7 provided on this form are true and correct to the best of my knowledge.

8 Signed at (city and state): Carnation, Washington

Date: 9/19/23

9 
Respondent signs here

Melvina Manning
Print name

10 I agree to accept legal papers for this case at my lawyer's address listed below:

11
12 
Attorney for Respondent

Nancy A. Gass WSBA # 49685
Print name and WSBA No.

9/19/23
Date

14 P.O. Box 1041; 4471 Tolt Ave
Lawyer's address

Carnation
City

WA
State

98014
Zip

16 Email (if applicable): carnationlaw@comcast.net